

Commercial Cryptography and the Diminished Power of the Fourth Amendment

Fourth Amendment & Commercial Encryption Reform Initiative

Proposal for Cryptography Courts and the Commercial Cryptography Responsibility Act

Campaign policy proposal · Four Pillars USA / Daniel for America

Technology did not create this constitutional crisis. Lawmakers' failure to modernize the framework did.

Executive summary

Commercial encryption has changed the practical relationship between a lawful warrant and the evidence it seeks. When devices, communications, and cloud systems are encrypted by design, a warrant may be constitutionally valid yet technically unexecutable. The supplied report argues that this gap diminishes the Fourth Amendment's practical force and creates uncertainty for courts, investigators, manufacturers, and the public.

The proposal responds with a specialized judicial and legislative framework built around **Cryptography Courts**, a **Commercial Cryptography Responsibility Act (CCRA)**, mandatory participation by relevant manufacturers and providers, and a formal evidence-custody system. Its stated goal is to preserve strong encryption for legitimate users while creating accountable, transparent processes for lawful investigations.

The constitutional problem

The Fourth Amendment protects people against unreasonable searches and seizures through probable cause, particularity, and judicial oversight. The report argues that the traditional warrant process assumes the government can execute a court-approved order. Commercial encryption can break that assumption: the warrant is issued, but the evidence remains inaccessible because the provider or device architecture is designed to prevent access.

The report identifies three related consequences:

1. **Warrants can become functionally unenforceable.** A judicial order may authorize access without creating a technically feasible path to execute it.
2. **Encrypted evidence can become effectively immune from seizure.** The gap is not necessarily created by a constitutional ruling, but by the architecture of commercial systems.
3. **The representation gap grows.** Encryption-related proceedings are often conducted without a structured adversarial voice for manufacturers, public defenders, privacy organizations, or technical experts.

Current landscape

The report describes strong encryption as ubiquitous across consumer devices, end-to-end communications, cloud storage, open-source libraries, and commercial services. It also identifies cross-border data storage, conflicting privacy laws, and extraterritorial jurisdiction as recurring problems.

Manufacturers and providers have strong reasons to resist compelled access, including user trust, cybersecurity, competitive position, and the risk that a special access mechanism could weaken security for everyone. The proposal therefore frames the issue as a responsibility and process question rather than a demand for universal backdoors.

Proposed solution framework

The report's framework is organized around six principles:

Principle	Proposed direction
Preserve constitutional protections	Keep probable cause, particularity, judicial review, and meaningful appellate access at the center of every encryption-related order.
Maintain strong encryption	Avoid blanket backdoors and preserve secure systems for legitimate users.
Create accountable process	Replace opaque, one-sided proceedings with transparent, reviewable procedures.
Prevent dual overreach	Guard against both government overreach and corporate immunity from lawful process.
Ensure technical feasibility	Bring cryptography expertise into judicial decision-making.
Keep review accessible	Provide zero- or low-cost appeals and fee waivers for constitutional challenges.

The source proposal also calls for prohibiting circumvention of constitutional protections by outsourcing encryption-bypassing or surveillance to foreign intelligence agencies.

Cryptography Courts

The proposal would establish specialized Cryptography Courts, with one court in each federal judicial district or an equivalent district-based structure. These courts would handle warrant applications involving encrypted data or devices, challenges to encryption-related searches and seizures, disputes between law enforcement and manufacturers, custody questions, and technical-assistance orders.

The proposed courts would combine judicial authority with technical expertise. Judges would receive cybersecurity and cryptography training, technical advisors would assist with complex matters, and court-appointed experts could provide independent analysis. The proposal also calls for participation by manufacturers, federal defenders, privacy organizations, and security researchers when their interests or expertise are materially involved.

Procedurally, the report proposes an end to routine *ex parte* proceedings for encryption-related warrants. Manufacturer and defender notification would be the default, while genuine emergencies would require rapid post-hoc review. Evidence would move into a formal custody

process overseen by a court deputy, with cryptographic verification, secure storage, access logging, and audit trails.

Commercial Cryptography Responsibility Act

The proposed CCRA would establish clear responsibilities for manufacturers and distributors of devices and services with embedded encryption. Its anticipated components include registration and disclosure requirements, lawful-access obligations, evidence-handling standards, liability rules, and transparency reporting.

The proposal includes protections for good-faith compliance, compensation or cost recovery for technical assistance, safe-harbor provisions, and safeguards against liability when a provider complies with a lawful order. It also contemplates escalating penalties for non-compliance, subject to constitutional limits and judicial review.

Safeguards against abuse

The report emphasizes that a system designed to restore lawful access must also prevent tyranny and petty-officer abuse. Proposed safeguards include a federal defender presence, mandatory judicial authorization, multi-party oversight, public reporting with appropriate redactions, technical audits, whistleblower and reporting mechanisms, automatic stays for constitutional questions, and accessible appeals.

The proposal specifically identifies anti-circumvention rules as a constitutional safeguard. Government actors should not be able to evade domestic constitutional requirements by outsourcing decryption or surveillance to another state or foreign intelligence service.

Implementation roadmap

The proposal describes a three-phase implementation roadmap:

Phase	Focus
Years 1–2	Pass the CCRA, establish the court structure, develop technical standards, and create the manufacturer engagement framework.
Years 2–3	Roll out a pilot in selected districts, train judges and defenders, and establish public education and reporting systems.
Years 3–5	Evaluate the pilot, expand nationwide if warranted, and maintain continuous technical and constitutional review.

Anticipated challenges

The source report recognizes technical, legal, political, social, and industry objections. Encryption evolves quickly, and no statutory framework can assume a stable technical environment. The proposal would therefore require continuous improvement, independent review, and periodic revision.

The report also anticipates Fourth Amendment, First Amendment, separation-of-powers, international-law, public-perception, and economic-impact concerns. Its answer is not to eliminate disagreement but to create a process in which those disagreements are visible, technically informed, and subject to meaningful judicial review.

International comparison

The report references the United Kingdom's Investigatory Powers Act, Australia's Assistance and Access Act, and varied European Union approaches as comparative examples. It treats these models as lessons rather than templates, emphasizing that any United States framework must remain consistent with domestic constitutional protections and the realities of commercial technology.

Recommendations

The supplied proposal recommends immediate legislative action to establish a Commercial Cryptography Responsibility Act, create specialized Cryptography Courts, define manufacturer participation and evidence-custody standards, preserve strong encryption for legitimate users, and guarantee low-cost appellate review. It further recommends transparent reporting, public accountability, technical expertise within the courts, and explicit anti-circumvention protections.

Public-review note

This document is a campaign policy proposal prepared from the supplied report source. It is not current law, legal advice, or a description of an active government program. Any legislative filing or public release should be reviewed by qualified constitutional, criminal-procedure, cybersecurity, and privacy experts.